

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 13, 2026
8:30 AM/1:30 PM

17. DEVON MATHIS V. AUBREY MATHIS

26FL377

Respondent filed a Request for Order (RFO) on May 28, 2026, seeking modification of the child custody and parenting plan orders. The parties were not referred to Child Custody Recommending Counseling (CCRC). Proof of Service shows Petitioner was electronically served on August 5, 2026. The court notes this is a post-judgment request for modification, and as such, Family Code section 215 applies.

Civil Procedure section 1005(b) states: “Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court. However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California...” This would have made July 22, 2026, the last day for personal service. This case required personal service or mail service with address verification. The last day for mail service would have been July 17, 2026.

The matter is dropped from calendar due to the lack of proper service.

TENTATIVE RULING #17: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.